

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN FRANCE

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in France, grounded in the planning and environmental system and documented campaigns

This guide is written in English but uses the French legal terms you will actually encounter (permis de construire, enquête publique, autorisation environnementale, and so on), each explained in plain language where it first comes up. It describes the system in mainland France; the overseas territories and Alsace-Moselle have some particularities — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in France. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In January 2018, after decades of opposition and legal action by environmental associations, the French government abandoned the **Notre-Dame-des-Landes** airport near Nantes — a project that would have destroyed 1,700 hectares of *bocage* and wetlands. Across the country, communities have forced projects to be refused, redesigned, suspended, or abandoned through the administrative courts and public pressure. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They send one objection during the **enquête publique** (public inquiry), then give up. They assume "the *préfet* will refuse it" without building public pressure. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the French system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (procedure / court pressure)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: France gives communities several unusually strong levers. A specialist system of **administrative courts** (*tribunal administratif* → *cour administrative d'appel* → *Conseil d'État*) reviews the legality of planning and environmental decisions and can annul them. An independent **Autorité environnementale** gives a public opinion on the quality of a project's impact study. And, powerfully, a project that will harm **protected species** (*espèces protégées*) may only proceed with a special *dérogation* that must clear a high legal bar — including a **"compelling reason of major public interest"** (*raison impérieuse d'intérêt public majeur*, RIIPM). Environmental associations with official approval (*agrément*) have standing to bring these cases. No French campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because they depend on the development's money or jobs, rely on the developer's own impact study, or face strong political pressure to say yes.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins refusals, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed interest, the offence of *prise illégale d'intérêts* — that is a different and more serious problem, covered separately in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in France, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

France is a centralised state with strong local government layered beneath it. Which body decides depends on what is being built and how big it is.

- **The commune (town or village), led by the *maire* and *conseil municipal*.** The commune adopts the local zoning plan — the **PLU** (*plan local d'urbanisme*) — which sets what may be built where, and the *maire* issues the **permis de construire** (building permit) for most ordinary construction. Most everyday building fights start here.
- **The intercommunal body (*EPCI/communauté de communes*)** — increasingly holds planning powers, adopts the intercommunal PLU (PLUi), and runs some services.
- **The *département* and the *région*** — handle certain infrastructure, transport, and land-planning matters, and distribute some funding.
- **The State, through the *préfet*.** The *préfet* (the State's representative in each *département*) is the key decision-maker for the environment and for large projects: the *préfet* issues the **autorisation environnementale** (the single environmental authorisation, below), regulates classified industrial and agricultural installations (**ICPE**, *installations classées pour la protection de l'environnement*), and signs the *dérogation* to harm protected species. For nationally important infrastructure, the State also makes the **déclaration d'utilité publique (DUP)** that enables expropriation.

So which level decides your project? - A house, an extension, a small building → the commune (a *permis de*

construire from the maire). - **A factory, a large livestock unit, a quarry, a waste facility, a big warehouse → the State via the préfet** (an **ICPE** authorisation and/or an **autorisation environnementale**). - A motorway, an airport, a big energy or water project → the **State**, usually with an upstream **public debate** (*débat public*), an **enquête publique**, and a **DUP**. - Anything harming a **protected species** or a **Natura 2000** site, or a wetland (*zone humide*) → needs a special environmental *dérogation* signed by the *préfet* — a powerful point of challenge.

The independent and expert bodies

Two are especially important for opposition: - **The Autorité environnementale (Ae)** — an independent authority that gives a **public opinion** (*avis*) on the quality of a project's impact study (*étude d'impact*): whether the impacts are properly identified and the mitigation adequate. A critical *avis* is valuable ammunition. - **The Commission nationale du débat public (CNDP)** — organises **public debate** on the largest projects, upstream of any authorisation. Also relevant: the regional environment department (**DREAL**), which instructs many files for the *préfet*, and the **commissaire enquêteur** (below).

How a decision is actually made — the journey of a project

1. **(Large projects) Public debate** — the **CNDP** may organise a *débat public* before the project is fixed.
2. **Impact study and independent opinion** — the developer (*maître d'ouvrage*) prepares an **étude d'impact**; the **Autorité environnementale** issues its public *avis* on it.
3. **Enquête publique (public inquiry)** — the file is placed on public inquiry, run by an independent **commissaire enquêteur**. **Anyone can submit observations**, on paper or online. At the end, the *commissaire enquêteur* gives a reasoned *avis* (favourable or unfavourable) — an unfavourable *avis* is a significant obstacle and a useful legal hook.
4. **Decision** — the **permis de construire** (from the *maire*) or the **autorisation environnementale** / ICPE authorisation (from the *préfet*), often bundling water law, protected species, and Natura 2000 into one act.
5. **Legal challenge** — an unlawful decision can be challenged before the **administrative courts** by a *recours pour excès de pouvoir* (an action to annul an unlawful administrative act), and suspended in urgent cases by a *référé-suspension*. Deadlines are strict (commonly **two months** from publication/display).

The rulebook — the laws that decide the outcome

- **The PLU** (local zoning plan) and the *Code de l'urbanisme* — what may be built where.
- **The Code de l'environnement** — the impact assessment, the **autorisation environnementale**, ICPE, water law (*loi sur l'eau*), **Natura 2000**, and the protection of species.
- **The protection of espèces protégées** — it is an offence to destroy protected species or their habitat; a *dérogation* requires that there is **no satisfactory alternative**, that the species' favourable conservation status is not harmed, and that the project answers a **compelling reason of major public interest (RIIPM)**. This three-part test is a frequent and powerful ground of challenge (it is exactly what the A69 motorway litigation turned on).
- **The séquence ERC** (*éviter, réduire, compenser* — avoid, reduce, compensate) — the hierarchy a project must follow for its environmental impacts.

Follow the money — why the system often leans toward "yes"

- **Communes** are funded partly by the **taxe foncière** (property tax) and gain from the **taxe d'aménagement** (a development levy) and from the jobs and activity a project brings — so there is often local pressure to approve.
- **The State** promotes growth, industry, housing, and infrastructure, and can classify a project as being in the public interest.
- **Developers** are usually well-resourced companies (sometimes large concession groups) that can pay for the consultants and lawyers who prepare and defend the project.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The administrative courts** (*tribunal administratif, cour administrative d'appel, Conseil d'État*) — can **annul** an unlawful decision. At the hearing, an independent *rapporteur public* gives a reasoned opinion.
- **The Autorité environnementale** — independent scrutiny of impact studies.
- **The Cour des comptes** (audit) and the **Défenseur des droits** (rights ombudsman).
- **Anti-corruption and transparency bodies** — the **HATVP** (which holds officials' declarations of interests and assets), the **AFA** (the national anti-corruption agency), and the **PNF** (the national financial prosecutor) (see Section 11).

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In France, the variable most likely to push a campaign above these ranges is a well-founded legal challenge before the administrative courts — above all on the **protected-species *dérogation*** or a defective impact study (Step 4).

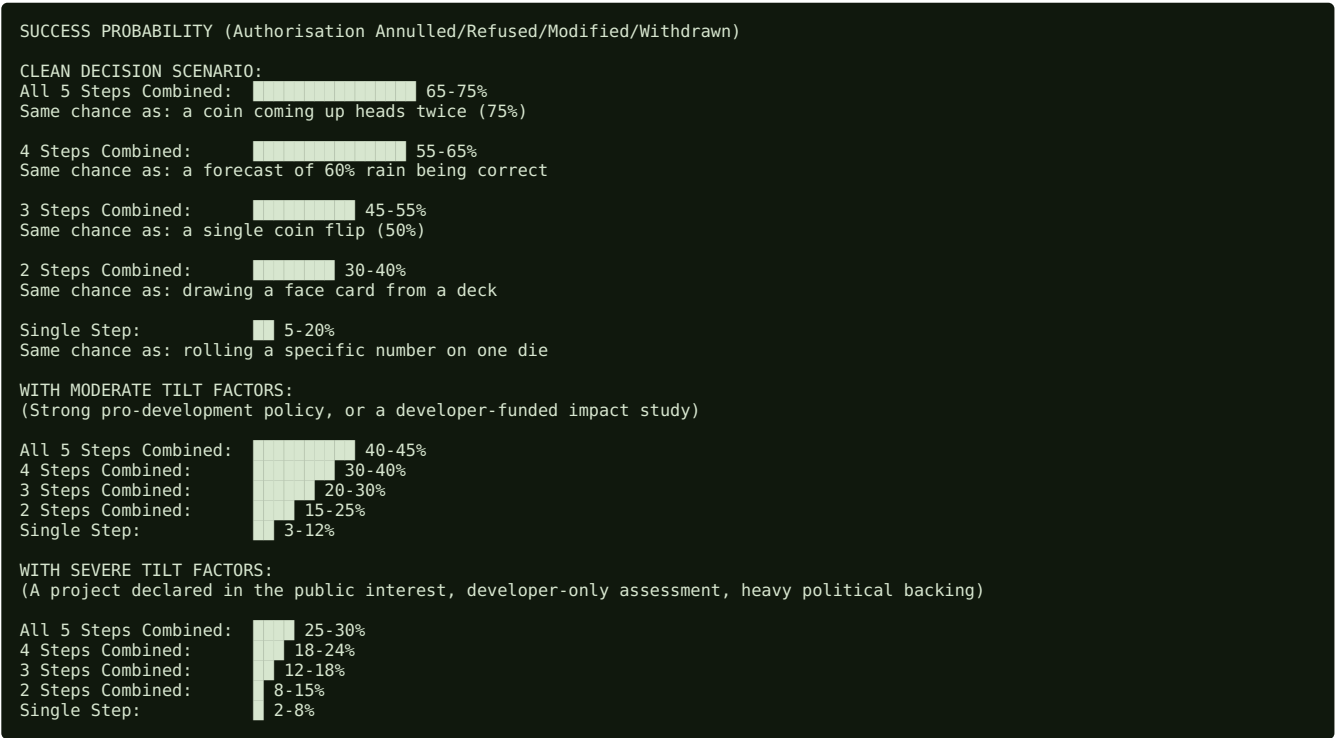
Individual Step Success Rates

Step	Success Rate	Timeline	Cost (EUR)	What "Success" Means
Documentation Only	5-10%	3-4 months	€4K	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	€13K	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	€15-45K	Slow, often loses on its own
Media Only	10-15%	3-6 months	€5K	Public knows, but no action
Docs + Opposition	25-35%	12 months	€17K	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	€48K	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	€52K	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	€18K	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	€52K	Authorisation annulled/refused/modified or project delayed

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: an approved environmental association (with agrément) has standing to litigate, and specialist environmental lawyers and the federations can keep costs down; a référé-suspension is comparatively quick and cheap — so the "Legal" figures above are not a hard floor.

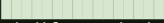
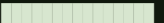
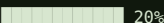
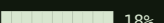
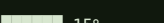
Effectiveness Visualization



One important point: a single clear legal defect — most powerfully, an unlawful **protected-species *dérogation*** (as at

first instance in the A69 case) or a defective impact study — can lead the administrative courts to annul an authorisation even where the politics favour the project, because the court is applying a legal standard the *préfet* cannot ignore. (Outcomes can also be reversed on appeal, so the legal battle often runs through several courts.)

Step Importance Ranking (When All Combined)

1. **OPPOSITION BUILDING** (Step 3)  25%
Why: creates political pressure, visible to decision-makers, enables other steps
2. **DOCUMENTATION** (Step 2)  22%
Why: provides ammunition for legal/media, grounds opposition in facts
3. **MEDIA STRATEGY** (Step 5)  20%
Why: makes opposition/legal/documentation visible, creates political cost
4. **LEGAL CHALLENGES** (Step 4)  18%
Why: buys time, creates court pressure — and holds the protected-species and impact-study levers
5. **TARGET ID** (Step 1)  15%
Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also filed sharp, well-grounded observations during the *enquête publique* is more persuasive than perfect documentation or a brilliant legal argument standing alone.

What French Campaigns Actually Show

A few patterns recur. **Organised opposition and a documented file are the base**, and France's distinctive levers are the **administrative courts** — including the urgent *référé* that can suspend a decision — and the **protected-species (*espèces protégées*) regime**, a frequent and powerful ground where a derogation was wrongly granted. **The public inquiry (*enquête publique*)** and the *autorité environnementale*'s opinion supply the procedural footholds. **A durable coalition and sustained media** turn these into political cost. **The ceiling depends on the merits and the politics** — a lawfully-approved, wanted project is usually delayed, conditioned, or redesigned, while a defective authorisation or a species breach can be undone. The through-line: **build the file, use the *référé* and the species regime, and hold the coalition and coverage together.**

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4 **Cost:** €0 **Outcome:** A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage" But: "The project drains 12 hectares of *zone humide* (wetland) and destroys the breeding habitat of a protected species listed in the *arrêté* of protected species."

Not: "Pollution" But: "The classified installation (ICPE) will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already near the air-quality limit."

Not: "Community harm" But: "The project takes 40 hectares of farmland and cuts the commune's green corridor (*trame verte*) in two."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. A protected species, a wetland, or a Natura 2000 site also opens a **specific legal front** (the *dérogation* test).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The maire** — for the **permis de construire** for most ordinary construction.

- **The *préfet*** — for the **autorisation environnementale**, the **ICPE** authorisation, the water-law authorisation, and the **protected-species *dérogation***. This is the key figure for larger and environmentally sensitive projects.
- **The State** (ministers / *Conseil d'État* decree) — for the **DUP** and the largest infrastructure.

Write it down concretely: "The *préfet* of [département] will sign the *autorisation environnementale* after the *enquête publique* closing on [date]. The Autorité environnementale has given its *avis*. A *dérogation espèces protégées* is required."

Question 3: What Specific Action Stops It?

Not: "Stop the project" But: "Persuade the *commissaire enquêteur* to give an unfavourable *avis*, and the *préfet* to refuse" — or, if refusal is unrealistic, "obtain strict conditions and real *compensation* under the *séquence ERC*."

Not: "Protect the environment" But: "Show the *dérogation espèces protégées* is unlawful because the project does not meet the RIIPM test, or that the *étude d'impact* is inadequate."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the decision is unlawful, become the ground for a *recours*.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. The **enquête publique** runs for a set period (often around a month) with a strict observation window. After the authorisation is published or displayed, the deadline to challenge it before the administrative court is **short — commonly two months** (and specific rules apply to *permis de construire* and to environmental authorisations). Map every date: the *enquête publique* dates, the *avis* of the *commissaire enquêteur*, the decision, and the two-month window to challenge it.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is there strong national or local **policy** in favour (an industrial, housing, or infrastructure priority; a project declared of public interest)? - Is the *étude d'impact* funded and written by the developer only? - Does the commune depend on the project for jobs, the *taxe d'aménagement*, or activity? - Has the project been given a **DUP** or otherwise labelled in the public interest — strengthening the State's hand? - Does the developer have deep resources for consultants, lawyers, and appeals?

Why this matters: if strong policy pressure or developer-controlled assessment is present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on conditions, compensation, and legal defects rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Time to complete: Months 1-4 **Cost:** €4,000-5,000 (EUR) **Outcome:** Three polished reports (30+ pages total) showing specific, quantified harms

Success Rate (Documentation Alone): 5-10% **Success Rate (Documentation + Opposition):** 25-35% **Success Rate (Documentation + Opposition + Legal + Media):** 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: comprehensive documentation of existing conditions BEFORE the project begins.

Why it matters: developers claim "the site is already degraded" or that baseline is unimportant. Baseline documentation proves what was there — and it cannot be reconstructed later.

Documented case — the wetlands of Notre-Dame-des-Landes

The Grand Ouest airport near Nantes was to be built on around 1,700 hectares of *bocage* and wetlands. Supporters treated the land as ordinary farmland; opponents made its ecological value impossible to ignore. Naturalists, farmers, and environmental associations documented the site as a living **wetland** (*zone humide*) — the source of several watercourses, rich in **protected species** (*espèces protégées*) and fed by good-quality groundwater — evidence that went straight into the official record.

That documentation shifted the debate. Inspectors appointed by the environment ministry judged the project **“surdimensionné”** (oversized) and pointed to a lesser-impact alternative; the wetland destruction and the weak cost-benefit case became central. After decades of opposition, occupation, and legal action by associations such as **France Nature Environnement**, the government **abandoned the airport in January 2018**.

Why it matters for you: the case for the airport rested on treating the land as empty. Documenting exactly what lived there — species, water, wetland function — is what took that argument apart.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim a site is “already degraded” and baseline cannot be reconstructed later. A workable approach: monthly surveys across a season cycle of the site plus upstream/downstream reference points; a species inventory with grid references, flagging anything on the national list of **protected species** (*espèces protégées*) that the developer's *étude d'impact* omitted — the raw material for a *dérogation* challenge; proximity to any **Natura 2000** site, protected area, or **ZNIEFF**; and hydrology (pH, dissolved oxygen, temperature, seasonal flow) plus the extent of the **wetland** (*zone humide*). Typical cost is around €4,500 for an ecologist/*bureau d'études*, GPS, and water-testing supplies — reducible with knowledgeable volunteers. Dated seasonal photographs and grid-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just “something bad” but “specifically THIS BAD in THIS WAY” — and it maps directly onto what the *étude d'impact* must properly assess.

Use the developer's own words and the assessment rules. Powerful, documentable weak points in French assessments include: - **Protected species.** If the project will destroy protected species or their habitat, it needs a **dérogation** meeting the three-part test (no alternative; no harm to conservation status; a compelling reason of major public interest, RIIPM). An assessment that hides or understates this is highly vulnerable — this is the ground on which the A69 motorway authorisations were annulled at first instance. - **The séquence ERC.** The project must show it has genuinely tried to **avoid** and **reduce** impacts before **compensating** — “compensation” offered in place of avoidance is a classic weak point. - **The Autorité environnementale's avis.** A critical independent *avis* on the *étude d'impact* is powerful; quote it.

Convert each of the developer's admissions (“temporary disturbance,” “limited habitat loss”) into a quantified prediction against your baseline.

Outcome (illustrative): an *étude d'impact* found inadequate on species, water, or the ERC sequence can be sent back, adding months or years — or can ground the annulment of the authorisation by the administrative court.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. “X hectares affected” matters less than “an estimated 45 additional respiratory cases a year, and €X of health-system cost.”

Method: use recognised air-quality modelling and the epidemiological literature to translate emissions into health outcomes, then attach costs. Public-health evidence and peer-reviewed studies let you estimate additional respiratory and cardiovascular cases and their cost for the affected population — additional asthma, hospital admissions, lost workdays, and total annual and lifetime cost.

Outcome (illustrative): an independent health analysis can move a commune, feed a critical *avis*, and force pollution-control conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage an ecologist or *bureau d'études* (or use knowledgeable community members — naturalists, retired scientists, students); set a seasonal survey schedule; document conditions. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, water-quality data, seasonal patterns, dated photographs (same spots across seasons), and grid-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the *étude d'impact* and the file from the *enquête publique*; identify specific impacts; test the study against the rules (protected species/*dérogation*, water, the ERC sequence, the Autorité environnementale's *avis*). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the decision.
- **Only environmental data.** Add health and economic impacts — the arguments that move decision-makers and the public.
- **No independent check.** A report the *préfecture* can dismiss as "activist material" is far stronger after an independent expert reviews it (budget €700-1,000).
- **Ignoring the developer's own admissions.** Their *étude d'impact* is your best source; quote it against itself.

Documentation Budget Breakdown (EUR)

Item	Cost	Notes
Ecologist / bureau d'études (baseline + species ID)	€2,900	Protected-species surveys
GPS / survey equipment	€350	Mapping/documentation
Water-quality testing supplies	€300	Sampling across seasons
Independent expert review	€800	Credibility
Printing/distribution	€250	Copies for decision-makers
TOTAL	€4,600	Reducible using knowledgeable community members

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the deciding body's register and the commune (mairie)'s own website. In France the official documents for a project — the permit application, the *étude d'impact*, the *enquête publique* notices, the commissaire-enquêteur's report — are posted by the body running the review: the *mairie* for the *permis de construire*, the *préfecture* for many authorisations, and the *autorité environnementale* for the environmental assessment opinion. The official documents for most local projects live on the commune (*mairie*)'s own website (planning applications, notices, agendas), so check those pages weekly. The legal clock often runs from what is posted there.

The project file and the *étude d'impact*. Get the developer's *étude d'impact* as soon as it is posted — it is public, and it is where the developer admits harm in its own words.

Baseline environmental data. State and agency environmental data (water agencies, DREAL); protected-species and Natura 2000 records; and the developer's own *étude d'impact* baseline.

Ownership and money. Company ownership and directors from the registre du commerce (Infogreffe); land and parcels from the cadastre; and elected officials' interest declarations (HATVP).

Case law and precedent. **Légifrance** (legifrance.gouv.fr) gives free access to French law and administrative-court decisions.

How to force a document open. A request under the **CADA** regime (access to administrative documents) and the environmental-information rules compels disclosure of records a public body holds. Use the request wording in Section 8E.

Free and low-cost help. **France Nature Environnement (FNE)** and its local federations litigate environmental cases; approved environmental associations (*associations agréées*) have standing and often carry the fight.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations and legal help already working nearby. Pull that thread first, then follow it into the registers above.

Where the French Record Lives

Much of the French paper trail is public and obtainable. The **enquête publique dossier** — the study, the *avis de l'autorité environnementale*, and the *commissaire enquêteur's* report and conclusions — is the spine of the case, and the report's reservations are quotable evidence. The **préfecture** publishes the authorisations (including *ICPE* and *loi sur l'eau* decisions), and the **autorité environnementale** publishes its opinions. For protected species and habitats, the **Inventaire national du patrimoine naturel (INPN)** and Natura 2000 designations establish what is at stake. Company and permit facts sit in public registers, and any refusal of access can be pursued through the CADA (the commission on access to administrative documents). Gather these against the chain of decisions so that each document attaches to the stage and the rule it concerns.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained) **Cost:** ~€13,000 (EUR) for a full year **Outcome:** 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20% **Success Rate (Opposition + Documentation + Legal + Media):** 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from flyers; they join from relationships. Identify the 15-20 people most affected or interested. **Phone** each (not email) for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (property value, health, water, farmland, a place they love, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition": - **Property/amenity group** — property values, traffic, noise, loss of a place - **Water/agriculture group** — wetlands, water take, farmland - **Health group** — air quality, dust, noise - **Environment group** — protected species, Natura 2000, cumulative effects Each group meets monthly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Form an Association (Loi 1901)

In France, the natural vehicle is a **registered association** under the *loi 1901*: it is quick and cheap to create, can collect donations, speak for the community, and — crucially — with time and an **agrément** (official environmental approval) can obtain **standing to litigate**. Formalise it early: a name, statutes, a bureau (president, treasurer, secretary), and a clear object referring to the protection of the environment and the local setting.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (*réunion publique*)

Hold a public meeting where the community sets out its concerns to itself, to the *maire* and local elected officials, and to press. A serious, informational meeting carries more weight with decision-makers than a protest at launch. Typical 3-hour shape: welcome → project explanation → community concerns (each person 3-5 minutes) → expert Q&A (an ecologist, a health voice, a legal voice) → next steps. Invite your *conseillers municipaux* and, where relevant, the *député*.

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print 1,000; distribute at shops, the *mairie* noticeboard, the market, medical practices; post a digital version. Cost: ~€250.

Step 2c: Observations During the *Enquête Publique* (the decisive record)

The most valuable "signatures" are **individual observations lodged during the *enquête publique***, each raising real legal grounds, plus a **pétition** for the wider count. Help residents file observations (in the register at the *mairie*, or online), each in their own words, citing specific grounds (impact on protected species, wetland, water, the inadequacy of the *étude d'impact*, inconsistency with the PLU). A large, well-argued body of observations pushes the *commissaire enquêteur* toward an unfavourable *avis* — a serious obstacle to the project. Cost: ~€50.

Step 2d: Media Coverage at Launch

Release data + observations together = a story. (Full press-release example is in Section 9, 9G.) Phone reporters, then email the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental federations — a departmental or regional affiliate of **France Nature Environnement (FNE)**, the **LPO** (bird protection), local naturalist associations — plus farming groups, hunters' and fishers' associations where interests align, business and tourism operators who lose from the project, and residents' associations. An FNE affiliate or an *agrée* association brings both expertise and **standing**. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **FNE / naturalist association:** "We need ecological expertise for the protected-species argument — can you review the *étude d'impact*?" - **An approved (*agrée*) association:** "Would you be willing to be a co-claimant in any *recours*?" - **Farmers:** "This takes farmland and threatens the water table — will you file observations?" - **Tourism operators:** "This affects the landscape your business depends on — can you speak to the economic impact?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental messaging to the naturalist association; water and farmland to the farmers;

health to a health voice; media to whoever has the contacts; legal to the *agrée* association working with a lawyer. Sequence activities so each builds momentum (coalition launch → data release → rally → observation-count milestone).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (*manifestations*)

Monthly, same time and place, growing attendance — outside the *mairie*, the *préfecture*, or at the site. Handle logistics: the required **déclaration** to the authorities in advance, marshals, accessibility, and a sound system for 100+. Momentum matters: "50 gather" becomes "gathering grows to 200."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (observation milestone → expert finding → coalition growth → rally → decision date).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: monthly (not weekly) meetings; celebrate milestones; fund one part-time coordinator (~€400-700/month) so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don't often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (500 observations, a 200-person rally, an unfavourable *avis* from the *commissaire enquêteur*) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (EUR)

Item	Cost
Factsheet printing (1,000 copies)	€280
Website/email hosting (annual)	€180
Venue hire + supplies	€350
Outreach travel	€300
Observation/petition materials	€50
Demonstration supplies (signs, sound)	€500
Coalition meeting costs	€180
Part-time coordinator stipend (8 hrs/wk × €16/hr × 52)	€6,656
Social-media management (3 months part-time)	€1,300
Fundraiser/event costs	€600
TOTAL	€10,396

Funding the campaign. Money typically comes from four places: individual donations (local collections, online *cagnottes* such as Leetchi or HelloAsso, and dedicated legal-cost appeals); grants from environmental and community funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered association can also issue receipts for tax-deductible donations once eligible. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~€6,600.

STEP 4: LEGAL CHALLENGES — USING THE PROCEDURE AND THE ADMINISTRATIVE COURTS

Time to complete: 3-24 months (depends on track) **Cost:** €0-45,000 (EUR; an approved association and a quick *référé* can make this far cheaper) **Outcome:** an unfavourable *avis*, refusal, conditions, suspension, or an authorisation annulled

Representation impact: - Experienced environmental/administrative lawyers (*avocats*): 35-45% favourable-outcome likelihood - General or less specialised representation: 25-35% - Self-representation: 5-15% - **A key advantage:** approved environmental associations (with *agrément*) have **standing** to litigate, the federations (such as **France Nature Environnement**) bring expertise, and a *référé-suspension* is comparatively quick and inexpensive — so a well-founded challenge is not gated by wealth.

Success Rate (Legal Only): 20-30% **Success Rate (Legal + Opposition + Media):** 60-70%

French legal strategy has three tracks, and the second is unusually powerful here.

TRACK 1: PARTICIPATION (the front door)

Most fights are shaped here, on the record, before any court is involved.

- **File observations during the *enquête publique*.** *Anyone can lodge observations, on the register at the mairie or online. Observations that cite real legal grounds — impact on protected species, wetland destruction, an inadequate *étude d'impact*, inconsistency with the PLU — carry weight; "we don't want it" carries little. A strong, well-argued body of observations pushes the commissaire enquêteur toward an unfavourable *avis*, which is a real obstacle and a useful legal hook.*
- **Use the *Autorité environnementale*'s *avis*.** If the independent authority has criticised the *étude d'impact*, quote it — to the *commissaire enquêteur*, the press, and later the court.
- **Ask the authority to reconsider (*recours gracieux*).** Before or alongside going to court, you can send the *préfet* or *maire* a formal request to withdraw or amend the decision. It is quick, cheap, and can extend your window to litigate.
- **Turn the process defects to account.** France has repeatedly seen authorisations challenged over the **independence of the *Autorité environnementale*** and over defective public participation — the kind of procedural ground that recurred in the Notre-Dame-des-Landes litigation.

Why this track matters: filing well — specific, on time, grounded in the *Code de l'environnement* and the evidence — often does more than filing loudly, and it builds the record you'll need for Tracks 2 and 3.

TRACK 2: THE PROTECTED-SPECIES AND IMPACT-STUDY LEVERS (the strongest cards)

Two grounds make this the most powerful legal tool available to French communities.

1. The protected-species *dérogation* (and the RIIPM test). It is an offence to destroy **protected species** (*espèces protégées*) or their habitat. A project that will do so needs a special **dérogation**, which the *préfet* may grant only if three conditions are met: there is **no satisfactory alternative**; the *dérogation* does **not harm the favourable conservation status** of the species; and the project answers a **compelling reason of major public interest** (*raison impérieuse d'intérêt public majeur*, RIIPM). This test is a frequent and powerful ground: in February 2025 the *tribunal administratif de Toulouse* annulled the environmental authorisations for the **A69 motorway** because the RIIPM condition was not met — the first time a motorway project had been annulled by a court on environmental grounds. (The A69 also shows the other side of the coin: the *cour administrative d'appel* later reinstated the authorisations and the *Conseil d'État* confirmed that, so the legal battle ran through three courts — a reminder that first-instance wins can be reversed on appeal.)

2. A defective impact study. The *étude d'impact* must properly assess the project's effects and show it has followed the **avoid-reduce-compensate** sequence (*ERC*). An impact study that ignores an impact, offers "compensation" instead of avoidance, or is contradicted by the ***Autorité environnementale*'s *avis***, is a strong ground to annul the authorisation.

Standing and speed — why you can get to court. Environmental associations that hold an **agrément** have standing to bring these cases, and individuals with a personal interest (*intérêt à agir*) can act too. A **référé-suspension** lets you ask the court to **suspend** a decision quickly, before the full hearing, where there is **urgency** and a **serious doubt** about the decision's legality. Combined with the federations' expertise, this means a community with a genuine legal point can

get it before a court, fast.

TRACK 3: JUDICIAL REVIEW (the *recours*)

When a decision is unlawful, you challenge it before the **administrative courts** by a **recours pour excès de pouvoir** — an action asking the court to **annul** an unlawful administrative act. The route runs **tribunal administratif → cour administrative d'appel → Conseil d'État**. Common grounds: an unlawful protected-species *dérogation*, a defective *étude d'impact*, a flawed public-participation or Autorité-environnementale process, or a conflict with the PLU. **Deadlines are short — commonly two months** from publication or display of the decision. At the hearing an independent **rapporteur public** gives a reasoned opinion.

Who can help. Approved associations and the **FNE** federations litigate these cases and can be co-claimants; specialist environmental *avocats* act for communities; and legal costs can be crowdfunded or, in some cases, met by legal aid. Ask early about standing, grounds, deadlines, and the modest risk of a costs order.

Legal Strategy Decision Tree

```
START: Is an enquête publique or authorisation procedure open?
└ YES → File observations NOW (Track 1). Build the record.
└ NO → Has the authorisation been signed/published? Note the SHORT (≈2-month) deadline.

Q1: Is there a legal defect the court could annul?
└ NO (lawful process, you just disagree) → No strong challenge; focus on opposition + media.
└ UNCLEAR → Take advice from an FNE affiliate or an environmental avocat.
└ YES (unlawful protected-species dérogation / no RIIPM; defective étude d'impact;
    flawed participation or Ae process; PLU breach) → Continue.

Q2: Budget?
└ €0 → Work with an approved (agrée) association as co-claimant; crowdfund.
└ €0-8K → Association- or lawyer-led recours + référé-suspension.
└ €8-45K → Full recours + référé, combined with opposition + media.

Q3: Is harm imminent once works start?
└ YES → File a référé-suspension (needs urgence + doute sérieux) to freeze works.
└ NO → The recours proceeds on the normal timetable.

RECOMMENDED PATHS
Path A – Clear protected-species / impact-study defect: recours + référé-suspension with an
    agréée association + Track 1 record + media. Highest ceiling.
Path B – Arguable but not clear-cut: build opposition + media; take advice; litigate if a
    defect crystallises.
Path C – No legal defect: don't litigate. Win it politically on the record and in the press.
```

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — an unlawful protected-species *dérogation* or a defective *étude d'impact* — can exceed these at first instance (as at Toulouse on the A69), though outcomes can be reversed on appeal.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Missing the two-month deadline.** The window to challenge an authorisation is short and strict.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The *dérogation espèces protégées* is unlawful because the project does not meet the RIIPM test" is a ground a court can rule on.
- **Ignoring standing and the référé.** Don't assume you can't get to court — an *agrée* association and a *référé-suspension* may open the door quickly.

The European Backstop

Beyond the domestic courts, France's membership of the European Union gives an added and sometimes decisive layer. Where an authorisation breaches the EU environmental directives — most often the **Environmental Impact**

Assessment, Habitats, and Water Framework directives — a complaint to the **European Commission** can open infringement scrutiny of France, and the directives themselves strengthen a domestic challenge, since national courts must interpret French law consistently with them. The **Aarhus Convention** reinforces the rights to information, participation, and access to justice that underpin every objection. In practice, the domestic *référé* remains the fastest route to suspend a project, and the protected-species and Natura 2000 rules the sharpest substantive grounds; the European channel is the backstop that raises the cost and the scrutiny when the national process falls short. Pursue them together: a well-documented directive breach is both a domestic ground and a European lever, and the two reinforce each other — a pending Commission complaint lends weight to the domestic case, while a domestic ruling documents the breach for Brussels.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often succeed in France — so you file the right fact against the right rule.

A defective enquête publique → annulment. Where public participation was skipped, too short, or its conclusions ignored. Feed it with: the notices (or their absence) and the commissaire-enquêteur's report.

An inadequate étude d'impact → annulment. Ignored effects, no real alternatives, or a weak treatment of a protected species or Natura 2000 site. Feed it with: the study's gaps and your expert critique.

A negative autorité environnementale opinion ignored → annulment. Feed it with: the AE opinion and the decision's failure to answer it.

A permit inconsistent with the PLU (local plan) → annulment. Feed it with: the plan's rules and the project's breach of them.

Conditions breached → enforcement. Feed it with: the prescriptions and dated evidence of breach.

The pattern: match one clean, documented defect to one clear ground, and lead with the procedural ones — they can undo an approval without your having to win the argument about whether the project is "good." An approved environmental association can tell you fast which ground is live, and often has standing to bring the case itself.

One Fact, Many Arguments

A single documented fact does several jobs at once. Take one finding — that a protected-species derogation (*dérogation espèces protégées*) was granted without the strict conditions the law requires. As a **legal argument**, it is a strong ground before the administrative courts, including the urgent *référé* that can **suspend** the authorisation while the case is heard — the species regime being one of the most effective levers in France. As a **procedural argument**, it shows the *enquête publique* and the *autorité environnementale*'s opinion were not properly answered. As a **political argument**, it is evidence a prized habitat was signed away. As a **media argument**, a named, threatened species is vivid and mobilising. Going through your strongest facts and asking what each proves to a judge, the *commissaire enquêteur*, an elected official, and a newsroom turns your file into an argument bank — and in France the *référé* means a well-documented defect can freeze a project fast.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign **Cost:** ~€5,000 (EUR) for trained spokespeople + ongoing support

Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15% **Success Rate (Media + Opposition + Documentation + Legal):** 60-75%

France has a strong national and regional press, plus dedicated investigative and environmental outlets, that cover exactly these fights — and a record of that coverage shifting outcomes.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your

opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored. - **Good:** "Independent survey finds a protected species the *étude d'impact* missed; the *préfet* decides on [date]." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Regional press** (e.g. *Ouest-France*, *La Dépêche*, *La Voix du Nord*) and **France 3 régions** / local radio — the audience that reaches your *maire* and *préfet*.
- **Le Monde** and national desks — for projects with wider significance.
- **Mediapart** (investigative) and **Reporterre** (environmental) — for deeper accountability stories.
- Specialist environmental press (e.g. *actu-environnement*) for the professional audience.

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local/regional reporters (environment, local-government, health rounds). **Phone** first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, a data tip, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (call five reporters)
- Month 2: first story (observation milestone)
- Month 3: press event releasing the survey/study; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: decision-date coverage

Real Media Dynamics (French grounding)

- **Coverage plus persistence can end a project:** Notre-Dame-des-Landes combined decades of local organising, an occupation, national coverage, and legal action — the mix that led the government to abandon the airport in 2018.
- **A live court case is a running story:** the A69 litigation, moving between the *tribunal administratif*, the *cour administrative d'appel*, and the *Conseil d'État*, kept the project in the national press for years and framed the wider debate.
- **Independent evidence beats the developer's study:** an independent ecological, water, or air-quality analysis that contradicts the developer's optimistic *étude d'impact* lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the *Code de l'environnement*/the PLU and the evidence — that is what gets read and acted on. The legal-challenge letter and press release are 8F and 8G.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the préfet / the maire] decides [date]

Hi [Reporter first name],

I follow your coverage of [round / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [independent survey / new evidence] shows [quantified finding – e.g. "a protected species the étude d'impact missed"], and [the préfet / the maire] decides on [date].

Why it's newsworthy: it's new (just released), specific (affects [# people / hectares / a protected species]), and time-sensitive (decision [date]).

I can send the full report and connect you with [one named expert] for an interview. Would a quick call this week work?

Thanks,
[Name] – [Association] – [phone] – [email]

8B. Email / letter to the maire, a councillor, or the préfet

Subject: [Refuse / attach strict conditions to] [project] – dossier [ref]

Madame / Monsieur [le Maire / le Préfet / the elected official],

I am a resident of [commune] writing about the [project], on which a decision (a [permis de construire / autorisation environnementale]) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the destruction of a protected species and a wetland, and an étude d'impact that does not properly follow the avoid–reduce–compensate sequence"].

I am asking you to [specific, achievable action – e.g. "refuse the authorisation," or "require real avoidance and compensation, an independent ecological follow-up, and strict conditions"].

[If true:] [#] residents have filed observations during the enquête publique, and these organisations share the concern: [FNE affiliate / farmers / naturalist association].

I would welcome a meeting and can share our full evidence.

Respectfully,
[Name], [address in the commune], [phone], [email]

8C. Observation during the enquête publique (the decisive record)

To: [the commissaire enquêteur, via the register at the mairie or the online portal for the enquête publique on [project]]

Observation objecting to the [project]. Enquête publique closes [date].

- Who I am: [name], [address], [interest].
- Grounds (with evidence):
 - [Protected species] – the project will destroy [species] and its habitat; the dérogation is not justified because [no satisfactory alternative / no compelling reason of major public interest – RIIPM]. (Attach evidence.)
 - [Wetland / water] – the project drains a zone humide / affects [river], contrary to the loi sur l'eau.
 - [Inadequate étude d'impact] – the study fails to follow the avoid–reduce–compensate sequence and is contradicted by the Autorité environnementale's avis on [points].
 - [PLU / urbanism] – the project conflicts with [zone / rule].
- What I ask: that the commissaire enquêteur give an UNFAVOURABLE avis and that the authorisation be REFUSED; alternatively, [strict conditions].

[Name] – [contact]
Attachments: [baseline / impact / health report]

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Bonjour [Name],

I'm [name] with [association] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "review the biodiversity section of the étude d'impact," or "be a co-claimant in a recours as an agréée association," or "file observations on the water impacts by [date]"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Association] – [contact]

8E. Records request (right of access to administrative documents)

Subject: Request for administrative documents – [project]

To: [the mairie / préfecture / agency]

Under the right of access to administrative documents (droit d'accès aux documents administratifs), I request copies of the following about [project]:

- the full étude d'impact and its annexes;
- the avis of the Autorité environnementale and of the consulted services;
- correspondence between [the préfecture / the mairie] and [the developer], [date] to [date];
- the protected-species dérogation file and any expert reviews.

Please provide these electronically. If any document is refused, please give the reasons; I reserve the right to seize the CADA (Commission d'accès aux documents administratifs) and, if needed, the administrative court.

[Name] – [contact]

8F. Legal challenge — pre-action / recours letter

NOTE: Deadlines are SHORT and STRICT – a recours against an authorisation is usually within TWO MONTHS of its publication or display. Standing is easiest through an approved (agréée) association; a référé-suspension can freeze works quickly (it needs urgence + a serious doubt about legality). Contact an environmental avocat or an FNE affiliate IMMEDIATELY.

RECOURS GRACIEUX / MISE EN DEMEURE
[Date]

To: [the préfet / the maire] – author of the decision
From: [claimant – resident / agréée association], [contact]

1. The decision challenged: [permis de construire / autorisation environnementale], reference [ref], dated [date].
2. Grounds:
 - Ground 1 – Unlawful protected-species dérogation: the project does not meet the RIIPM test / there is a satisfactory alternative / it harms the species' conservation status.
 - Ground 2 – Defective étude d'impact: [impact not assessed / ERC sequence not followed / contradicted by the Autorité environnementale's avis].
 - Ground 3 – [Procedural defect / conflict with the PLU / flawed participation].
3. We request that the decision be withdrawn within [two months], failing which a recours pour excès de pouvoir (and, if works are imminent, a référé-suspension) will be filed before the tribunal administratif.

[Name / avocat / association] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Town / Date]

[LEAD – answer "why now?"]
[Local association] released [study / findings] today showing [specific finding] affecting [# of people / hectares / a protected species].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The préfet / the maire] decides on [date]. The enquête publique closes [date].

[CALL TO ACTION] To file an observation: [how, via the register or portal].
For more: [contact].

CONTACT: [Name / Association / Phone / Email]

ATTACHMENTS: full report, technical summary, methodology, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the budget branches, and the protected-species and impact-study levers that are often the strongest cards in France.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a year-long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. **File observations during the enquête publique, before it closes. One page naming one or two concrete grounds (a protected species, water, the PLU). It enters the record the commissaire-enquêteur and any court will read.**
2. **Get the étude d'impact and quote its worst admission back to the authority.** The developer's own words carry the most weight.
3. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach a lawyer or expert.
4. **File one CADA request** (Section 8E) — even if someone else uses it later.
5. **Point one environmental association at the fight.** France Nature Environnement or a local association agréée may take it from there — you hand off, you don't have to lead.
6. **Ask an approved environmental association to join** — an association agréée has standing to bring the recours and may carry the case.
7. **Tell your neighbours the deadline.** Ten individual submissions beat your one.

Do only the first three and you've preserved the record, put the project in the press, and left a trail others can pick up.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because they depend on the development's money or jobs, rely on the developer's own impact study, or face strong political pressure to say yes. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

Important Caveat

This section describes patterns from documented French dynamics and public policy — local revenue and jobs, developer-funded impact studies, a project labelled in the public interest, and the tightening response to protest. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial incentive to approve (the *taxe d'aménagement*, jobs, local activity); bias information (developer-funded *études d'impact* read optimistically); advantage well-resourced developers (better consultants, *avocats*, appeals); strengthen the State's hand when a project is declared of public interest or given a **DUP**; and — a real feature in France — expose protest to public-order policing, occupation clearances, and, at times, attempts to dissolve activist collectives.

DOESN'T: guarantee approval; make opposition impossible; remove the protected-species and impact-study rules; or prevent refusals, conditions, suspension, and delay.

Analogy: a tilted system is like playing with the pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, and your legal grounds cleaner.

Documented French Dynamics

Persistence and law can end a project (Notre-Dame-des-Landes). Despite decades of official backing, the Nantes airport was abandoned in 2018 after sustained opposition, occupation, and legal action. **Lesson:** even a State-backed project can fall when opposition is durable and the legal and political costs mount.

A court can override the politics — but the battle runs through several courts (A69). The A69 authorisations were annulled at first instance on the protected-species test, then reinstated on appeal and by the *Conseil d'État*. **Lesson:** the legal levers are real, but plan for a long fight through the court hierarchy.

Developer-funded assessment. *Études d'impact* are commissioned by the developer. Independent survey work that contradicts them — a missed protected species, an understated wetland — is one of the most valuable things a campaign can produce, and can feed a critical *avis* and a *recours*.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): the *maire* or *préfet* decides with genuine scrutiny; no overriding public-interest label; a clear legal defect exists; the Autorité environnementale is critical. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-development policy and a developer-funded *étude d'impact*, but independent evidence is possible and a legal ground is arguable. → 40-45% with all 5 steps; often win conditions and compensation even if not a refusal. Proceed; prioritise the protected-species/impact-study ground and conditions.

RED FLAG (high tilt): a project declared in the public interest or given a DUP; heavy political backing; challenge relies on interpretation. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest legal ground; build power for the next fight.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

When procedure and legal routes are exhausted, some French communities and land defenders have engaged in direct action — occupations (a ZAD, "zone to defend"), blockades, and mass mobilisations (as at the *mega-bassines* protests at Sainte-Soline). This is descriptive of what has occurred, not guidance.

Documented consequences under French law: occupations are cleared by court-ordered *expulsion* and policing; blockades and unauthorised gatherings can bring criminal charges; and the State has at times sought to **dissolve** activist collectives (in 2023 the government dissolved *Les Soulèvements de la Terre*, a decision the *Conseil d'État* later overturned). A criminal record can affect employment. Direct action has produced delay and disproportionate media attention in documented cases, but on its own rarely stops a project permanently; combined with legal and organising work it is more consequential. Anyone considering it should understand the specific legal risks and take advice first.

Honest Assessment

Where the system is tilted, opposition using procedural and legal methods has lower odds of an outright stop — but still reliably wins refusals or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for a *recours*. And France offers genuine equalisers: independent administrative courts that can annul an

unlawful authorisation, a high legal bar for harming protected species, an independent Autorité environnementale, and associations with standing to litigate. Neither scenario makes opposition futile.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it looks different in each institution. Read your situation actor by actor — the type of capture changes which lever works, and sometimes tells you a lever is closed. Handle this carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

The maire and municipal council. The most common pressure point: a commune keen on the tax and jobs, or an elected official with a developer tie. Signs: a sudden reclassification or rezoning, a rushed vote, a report that ignores its own evidence. Lever: the conflict-of-interest rules (*prise illégale d'intérêts*) — an official who took part despite an interest can taint the decision, a lower bar than proving corruption.

The préfecture, the DREAL, and the autorité environnementale. Capture here is usually softer — political direction to approve, or reliance on the developer's own consultants. Signs: an assessment that reads as the developer's document. Lever: a *recours* before the tribunal administratif for an illegal act.

The developers. Watch for land assembled quietly before a project is public, shell companies, and revolving-door hires of former officials or regulators. Infogreffe, the cadastre, and HATVP interest declarations surface the timeline a journalist needs.

The courts. France's administrative courts (tribunal administratif, cour administrative d'appel, Conseil d'État) are independent and annul unlawful authorisations regularly. The constraint is time; where work could start, seek a *référé-suspension* rather than relying on a slow final judgment.

Ministers and national politicians and priority projects. Where a project is a stated national priority, expect the whole chain to lean toward yes. That is not corruption, but capture of a kind; the honest path is procedural rigour plus public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the procureur (for *prise illégale d'intérêts* and corruption), the Agence française anticorruption, the Cour des comptes for public money, and the Défenseur des droits — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys (Step 2); form the association and start one-to-ones (Step 3); prepare for the *enquête publique* and make first reporter calls (Steps 4-5). *Outcome:* structure forming, the record beginning.

Months 2-3 — Public Launch: baseline complete; public meeting + observations drive during the *enquête publique* (Step 3); media event (Step 5). *Outcome:* opposition visible, hundreds of observations lodged, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the *étude d'impact* (Step 2); expand the coalition and bring in an *agrée* association (Step 3); take legal advice and prepare grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/economic report (Step 2); sustained monthly rallies (Step 3); the decision (*permis* / *autorisation*) (Step 4); expert press events (Step 5). *Outcome:* a possible unfavourable *avis*, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: rallies escalating (Step 3); if authorised, a *recours* and *référé-suspension* within the two-month window (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, court process live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning (Step 4); media

momentum (Step 5). *Outcome*: procedure + opposition + media + law compound; refusal, conditions, annulment, or withdrawal.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the *dérogation* is unlawful for want of a RIIPM," not "we oppose the project."
2. **Multi-tactic pressure** — observations + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout.
4. **Documentation first** — build the evidence, then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups, and bring in an *agrée* association for standing.
6. **Political pressure, not just legal** — the record and the press create the cost; the law buys time and can annul.
7. **Use the legal levers** — the protected-species *dérogation* and a defective *étude d'impact* are often the strongest cards.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal, annulment, or withdrawal is the bonus.
9. **Persistence** — plan for 12-24 months (and possibly several courts) and keep momentum.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving (conflict or leadership problem); no media coverage for 2-3 months; the *recours* stalling or the two-month deadline approaching; fundraising below half your target by month 6; a core organiser leaving without a successor; or someone new pushing illegal tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Authorisation refused / annulled / project withdrawn** (rarer): usually needs overwhelming opposition + a strong legal case + heavy media + low tilt. Notre-Dame-des-Landes (abandoned) shows it happens; the A69 shows a first-instance annulment can be reversed on appeal.
- **Authorisation modified** (most common victory): conditions, real avoidance and compensation under the ERC sequence, buffers, independent ecological follow-up, redesign — frequently via the *préfet* or a court.
- **Delay / attrition**: stalled for years while procedure and litigation run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat**: the project proceeds. Focus then shifts to enforcing conditions and compensation, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, opposition is holding or growing, media is at least monthly, the coalition is stable, and the decision or deadline is not imminent. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months (and perhaps a first court), procedural and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in France — even where local revenue, jobs, and State policy point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers refusals, conditions, compensation, delay, and durable power.

And France offers genuine equalisers: independent administrative courts that can annul an unlawful authorisation — as happened at first instance on the A69 — a high legal bar for harming protected species, an independent *Autorité environnementale*, associations with standing to litigate, and, when a project truly lacks support, the possibility of outright

abandonment, as at Notre-Dame-des-Landes.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the integrity bodies. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.
